Matter 20 — Revised Findings and Judgment After the Aug. 29 Order

Oct 24, 2026 · @Brendan Ngwa Nforbi

This revises the Oct. 24 strategy memo to fit Judge Whitman's Aug. 29, 2026 order sustaining the demurrer in part. The order closes two of the memo's arguments and sets the test Count 1 must meet. Everything below assumes that order is law of the case.

The original memo, with superseded points flagged: Oct. 24 Research Memo

What the Aug. 29 order decided

The order resolved four points that control the motion.

Issue	Ruling (order pp.)	Effect on this motion
Count 1, abuse of discretion in refusing to certify	Overruled; merits are "an issue[] for trial, not demurrer" (pp. 3–4)	Survives. Whitman framed the merits as a trial on the facts.
Count 2, reason-giving under § 679.10(i)(2)	Sustained without leave. The statute requires detail only for non-cooperation; the letter "did provide an explanation" (p. 4)	The "inadequate explanation" theory is foreclosed. It cannot be a finding or a remand directive.
Count 3, helpfulness presumption under § 679.10(h)	Sustained without leave as immaterial, since helpfulness was not the denial ground (pp. 4–5)	Helpfulness is not an error in the denial. It matters only for direct certification.
Count 4, declaratory relief	Sustained with leave; per the portfolio record, not amended	Out of the case.

Whitman's test for Count 1 (p. 4). If at trial she credits that neither petitioner nor the car smelled of alcohol, that he showed no impairment in talking or "in performing the physical field sobriety tests he agreed to perform," and that the officers lied in the report, she

"could reasonably find probable cause for arrest was lacking." That finding "could support" an abuse of discretion. She cited *People v. Wolterman* (1992) 11 Cal.App.4th Supp. 15, 18 and *Espinoza v. Shiomoto* (2017) 10 Cal.App.5th 85, 101–102.

What she already sees on the other side (p. 3). Sleeping on an interstate shoulder after midnight, an "open alcohol container" (the record shows an empty Mike's Hard Lemonade can), that he "resisted one of the tests," and the PAS refusal. She cited *People v. Thompson* (2006) 38 Cal.4th 811, 818 and Veh. Code §§ 23152(a), 23222(a), 23612(a). She also noted that the petition's own exhibits undercut some of its allegations.

Three consequences for the memo:

1. The remand cannot rest on an inadequate explanation. It must rest on an abuse of discretion tied to the lawfulness of the arrest.
2. The court expects to face probable cause. The decision-process points (the misreported walk-and-turn, what Serrato reviewed) support that showing; they do not replace it.
3. A focused evidentiary hearing under CCP § 1090 is a realistic primary path, not just a fallback, given the "trial on the merits" language.

Revised Tier A findings

Tier A now has eight findings, all drawn from admissions, CHP's own records, or the recording. None depends on the dismissed counts. Each is something the court can find without crediting petitioner over the officers.

#	Finding	Source	Needed for
A1	CHP is a certifying entity (§ 679.10(a)(1)) and Serrato a certifying official (§ 679.10(b)).	Answer ¶¶ 13–14	Both

#	Finding	Source	Needed for
A2	Petitioner requested certification on Apr. 9, 2026, attaching the CHP 202 and his transcript. Serrato denied on Apr. 20 solely for lack of qualifying or substantially similar criminal activity.	Answer ¶¶ 2–3, 58–61; Order p. 2 (quoting the letter)	Both
A3	False imprisonment and unlawful criminal restraint are qualifying activities. Whether qualifying activity occurred here turns on whether the restraint had lawful authority, judged on facts known at the moment of arrest. Charges, prosecution and conviction are not required.	§ 679.10(c)(18)–(19), (d), (k)(1); Pen. Code §§ 236, 237(a); Order p. 4	Both (pure law)
A4	At about 01:11:16 petitioner was ordered to turn around, then handcuffed, transported and booked. The restraint was intentional and against his will.	Answer ¶¶ 38–39, 41; recording 01:11:15–01:11:33	Both

#	Finding	Source	Needed for
A5	The CHP 202 says petitioner "chose not to perform" the walk-and-turn "and related it was difficult." The recording shows he said "I think we can do that," and Officer Melano advised against it because of "uneven ground." The same report calls the surface "clear, cool, and dry" and lists "poor performance on the FST's" as an arrest basis.	AGO 000030–32; recording 01:10:14–01:10:30	Both
A6	The one-leg stand entry is consistent with the recording: petitioner doubted he could balance and was told he did not have to do it.	Recording 01:09:14–01:10:12	Both (candor; answers "resisted one of the tests")
A7	No officer said aloud on the recording that he smelled alcohol or that petitioner's speech was slurred or impaired. Melano identified the cup's contents as urine.	Answer ¶¶ 36–37, 44–45, 47	Both
A8	The only alcohol container found was an empty Mike's Hard Lemonade can, which petitioner denied drinking.	Answer ¶ 47	Both

Add only if discovery supports it. A9: before Apr. 20 the certifying official did not view the recording or address the walk-and-turn conflict. Use it only if CHP admits it in a response to a request for admission or produces a decision file showing it. Do not infer it from the May 9 memo date or the 11-day turnaround.

Removed from Tier A:

- The § 679.10(i)(2) explanation defect (foreclosed by Count 2).

- The helpfulness presumption as an error in the denial (foreclosed by Count 3). It moves to the certification findings only.
- Any statement that the court can grant remand "without deciding probable cause." See the next section.

The probable-cause showing Whitman invited

Organize the merits around the three things she said she would need to credit: no odor, no impairment in speech or in the tests he agreed to perform, and a false report. The record proves the second and part of the third. The first needs live testimony.

Whitman's element	What the record proves now	What it cannot prove	What closes the gap
No odor of alcohol	No officer voiced an odor (Answer ¶ 44). Melano said "I think it's booze" before contact (00:56:09), then identified the cup as urine (00:58:51). Meza declined to smell the cup (00:59:02).	Silence does not prove absence; *Espinoza* treats a reported strong odor as weighty.	Cross-examination of both officers at a § 1090 hearing.
No impairment in speech	Coherent answers throughout, including the 01:01:21 fatigue explanation; correctly named Livermore, read signs, spelled his name (Answer ¶ 37).	*Espinoza* calls coherent speech only "some evidence" against intoxication.	The native audio played in court; it is the court's own observation, not a credibility contest.

Whitman's element	What the record proves now	What it cannot prove	What closes the gap
No impairment in the tests he agreed to perform	He performed HGN and the Romberg. He agreed to the walk-and-turn, which the officers called off (A5).	HGN clues and the Romberg estimate stand unrebutted.	An SFST expert on HGN administration; a frame count of the Romberg interval (01:08:02 to about 01:08:40–45) from the native file.
Officers lied in the report	The walk-and-turn entry and the "clear, cool, and dry" surface entry are contradicted by the recording. Field notes were "thrown out."	One false entry does not prove the sensory entries false, or that the error was deliberate.	Officer testimony explaining the entries. Let the court draw the inference; do not argue "fabrication."

Use her cases candidly. Both cases she cited lean toward CHP on their facts, so the brief should own them.

- *Espinoza v. Shiomoto* (2017) 10 Cal.App.5th 85 upheld a DUI arrest on red, watery eyes, a strong odor, stumbling and refused FSTs. It held that officers need not accept a denial of drinking, and that the test is what a reasonable officer would conclude, not the officer's motive. Distinguish it: no stumbling here, the FST "refusal" is the one the recording contradicts, and the odor is the disputed fact rather than a given.
- *People v. Wolterman* (1992) 11 Cal.App.4th Supp. 15 found the DUI arrest unsupported under the then in-presence rule, but upheld the arrest for public intoxication (Pen. Code § 647(f)) on objective facts. Expect CHP to argue any offense the facts support. Answer: § 647(f) requires inability to care for one's own safety, and petitioner was compliant, oriented and coherent, unlike Wolterman's driver, who was partly in a traffic lane and wandered into off-ramp traffic.

Correct the PAS chronology respectfully. The order lists the PAS refusal and cites Veh. Code § 23612(a). The roadside PAS is voluntary, with an advisement of the right to refuse (§ 23612(h)–(i)). The implied-consent refusal under § 23612(a) came after handcuffing (01:15:54 onward). Answer ¶ 38 makes the same compression. One paragraph, no argument that the PAS refusal is irrelevant, only that the post-arrest refusal cannot support the arrest.

Realistic outcome. On the present record, the court can find the report's FST account materially inaccurate and its sensory claims unverified. That supports vacatur and controlled reconsideration. A finding that probable cause was absent, which direct certification needs, requires the court to credit petitioner on odor after hearing the officers.

Revised remand directives

The directives now govern only how CHP decides qualifying activity, plus a compliance return. Nothing asks for a written explanation beyond what Whitman held § 679.10(i)(2) requires.

Directive	Status vs. the Oct. 24 memo	Why it survives the order
(a) Apply § 679.10(g)(1): certify if petitioner was a victim of qualifying activity and has been, is, or is likely to be helpful.	Kept	Statutory text the order quotes (p. 1).
(b) Judge the lawfulness of the restraint on facts known at the 01:11 arrest, not on the later warrant or blood result.	Kept	Order p. 4 makes probable cause the question; *Thompson* measures it at arrest.
(c) Review the native recording and address finding A5; do not rely on the CHP 202's walk-and-turn entry, or on "poor performance on the FST's" to the extent it rests on that entry.	Kept, narrowed to one named error	It corrects a specific factual error, without dictating a result.
(d) Do not treat the absence of charges, prosecution, conviction or officer discipline as dispositive.	Kept	§ 679.10(k)(1)–(2).
(e) Do not treat the post-arrest implied-consent refusal as a basis for the arrest.	Changed from "any PAS refusal"	The judge counted the roadside PAS refusal; only the later refusal is clearly irrelevant to the arrest.

Directive	Status vs. the Oct. 24 memo	Why it survives the order
(f) Do not rely on a ground barred by § 679.10(k)(3), including criminal history.	Kept	Statutory; parole status appears in CAD.
(g) If the new decision reaches helpfulness, apply the § 679.10(h) presumption; if it rests on non-cooperation, comply with § 679.10(i)(2).	Rewritten, now conditional	Matches Whitman's reading: (h) and (i)(2) apply when non-cooperation is the ground.
(h) Element-by-element written explanation of any renewed denial	**Deleted**	Foreclosed by the Count 2 ruling.
(i) Within 45 days, file a verified return attaching the new determination and listing the materials the certifying official reviewed.	Kept, reframed as compliance	A return under the writ, not a statutory reason-giving duty.
(j) The court retains jurisdiction to determine compliance.	Kept	Standard writ practice.

Optional, low priority. You could ask that reconsideration be done by a certifying official other than Serrato, since he is a respondent. The statute lets the agency head or a designated supervisor certify (§ 679.10(b)). Raise it only at oral argument, if at all; in writing it reads as dictating the decision-maker.

Proposed judgment, Alternative 1: certification

This alternative needs Tier A plus five findings the court can make only after hearing the officers. Lodge it, but argue it as conditional on the evidence.

Additional findings required:

- **B1.** On the facts known to the officers at 01:11:16, a person of reasonable caution would not have believed petitioner drove under the influence (*Thompson*, 38 Cal.4th at p. 818). The court credits, on the evidence heard, that no odor of alcohol was present,

that petitioner's speech was not impaired, and that the walk-and-turn was not performed because the officers declined to administer it.

- **B2.** The facts did not support an arrest for any other offense, including Pen. Code § 647(f).
- **B3.** The restraint therefore lacked lawful authority and was false imprisonment (Pen. Code §§ 236, 237(a)); petitioner was its direct victim.
- **B4.** No law enforcement agency requested information or assistance that petitioner refused (Answer ¶ 57). He reported the conduct to CHP and POST and stands willing to assist. He has been and is likely to be helpful (§ 679.10(g)(1), (h)). Helpfulness is reached here because certification requires it, not as an error in the original denial.
- **B5.** With B1–B4 established, the certifying official's duty can be exercised in only one lawful way.

Proposed language:

> **[PROPOSED] JUDGMENT GRANTING PEREMPTORY WRIT OF MANDATE ON THE FIRST CAUSE OF ACTION**
>
> The First Cause of Action came on for hearing on _____, 2027, in Department 25. Having received the evidence and heard argument, the Court finds and orders:
>
> 1. The Court adopts Findings A1–A8 and B1–B5 [or: the findings stated on the record, incorporated by reference].
> 2. The April 20, 2026 denial of Petitioner's Form I-918, Supplement B request is VACATED.
> 3. A peremptory writ of mandate shall issue commanding Respondents, within thirty (30) days of service, to complete, sign and deliver to Petitioner a Form I-918, Supplement B certification under Penal Code section 679.10, subdivision (g)(1), identifying false imprisonment as the qualifying criminal activity and describing it consistently with the Court's findings.
> 4. Within forty-five (45) days of service, Respondents shall file and serve a verified return showing compliance.
> 5. The Court retains jurisdiction to determine compliance and to enforce the writ.
> 6. This judgment does not determine Petitioner's eligibility for U nonimmigrant status, which rests with U.S. Citizenship and Immigration Services, and adjudicates no claim other than the First Cause of Action.
> 7. Costs as allowed by law on timely memorandum.

Proposed judgment, Alternative 2: vacatur and controlled reconsideration

This alternative needs Tier A plus three findings that stop short of deciding probable cause. It is the middle path between Whitman's two stated outcomes, so the brief must justify it: the agency should first apply its judgment to an accurate record (*Keeler v. Superior Court* (1956) 46 Cal.2d 596, 600–601).

Additional findings required:

- **R1.** The CHP 202's account of the field sobriety tests, which supplies arrest basis (5), is materially inaccurate as to the walk-and-turn and the test surface (A5).
- **R2.** Whether qualifying activity occurred depends on whether reasonable cause existed at 01:11:16. The inaccuracy in R1 bears directly on that question, and the evidence on odor and speech is disputed.
- **R3.** A qualifying-activity determination made on a record containing the R1 error cannot be sustained as an exercise of discretion, and must be made again on the accurate record. [Add A9 here if discovery establishes it.]

Candor point. CHP will argue the order allows only two results: probable cause was lacking (abuse) or it was not (no abuse). The response is that a determination resting on a materially false premise is itself an abuse, whatever the right answer on remand. Argue Alternative 1 first so the court sees remand as the measured result.

Proposed language:

[PROPOSED] JUDGMENT GRANTING PEREMPTORY WRIT OF MANDATE AND DIRECTING RECONSIDERATION

1. The Court adopts Findings A1–A8 and R1–R3 [and A9, if made].
2. The April 20, 2026 denial is VACATED. The Court does not decide whether the November 1, 2024 arrest was lawful.
3. A peremptory writ shall issue commanding Respondents, within thirty (30) days of service, to make a new determination on Petitioner's April 9, 2026 request, in which the certifying official shall: (a) apply Penal Code section 679.10, subdivision (g)(1), under which certification is required if Petitioner was a victim of qualifying criminal activity and has been, is being, or is likely to be helpful; (b) determine whether the restraint beginning at approximately 01:11 on November 1, 2024 had lawful authority, on the facts known to the officers at that time, without relying on the later search warrant or blood-test result; (c) review the native recording produced as file 7659@20241101005536-0.mp4 and address Finding A5, and not rely on the CHP 202's Walk and Turn entry, or on its reference to "poor performance on the FST's" to the extent that reference rests on that entry; (d) not treat the absence of an investigation, charges, prosecution, conviction or officer discipline as dispositive (§ 679.10, subd. (k)(1)–(2)); (e) not treat Petitioner's post-arrest refusal of chemical testing as a basis for the arrest; (f) not rely on any ground prohibited by section 679.10, subdivision (k)(3); and (g) if the determination reaches helpfulness, apply section 679.10, subdivision (h), and if any denial rests on non-cooperation, comply with section 679.10, subdivision (i)(2).
4. Within forty-five (45) days of service, Respondents shall file and serve a verified return attaching the new determination and identifying the materials the certifying official reviewed.
5. The Court retains jurisdiction to determine compliance.
6. Nothing in this judgment directs a particular result, determines eligibility for U nonimmigrant status, or adjudicates any claim other than the First Cause of Action.

Fallback order setting a focused evidentiary hearing

Because Whitman spoke of a "trial on the merits," this is now a realistic main path. Raise it at the Oct. 28 case management conference: ask whether she wants the Jan. 8 date used for a noticed motion, or a short evidentiary hearing under CCP § 1090 [verify section].

Proposed language:

> **[PROPOSED] ORDER SETTING LIMITED EVIDENTIARY HEARING ON THE FIRST CAUSE OF ACTION**
>
> 1. A limited evidentiary hearing on the First Cause of Action shall be held on _____ at _____ in Department 25, not to exceed ___ hours.
> 2. The hearing is limited to: (a) the observations the arresting officers relied on at the time of arrest, including odor, speech and field sobriety tests; (b) the Walk and Turn exchange recorded at approximately 01:10:14–01:10:30 and the corresponding CHP 202 entries; (c) the materials the certifying official reviewed before April 20, 2026, unless resolved by stipulation or discovery; and (d) helpfulness, only if reached.
> 3. Witnesses are limited to Officers Meza-Gonzales and Melano, Captain Serrato on item (c) only, Petitioner, and any expert disclosed by _____.
> 4. The native recording 7659@20241101005536-0.mp4 shall be received on stipulation of authenticity or, absent stipulation, on a custodian declaration. The parties shall file a joint statement of excerpts to be played by _____.
> 5. Nothing in this order revives a dismissed cause of action, reopens the rulings on the second and third causes of action, or decides the merits.

Changed from the packet's version: it names witnesses and a time limit, limits Serrato to what he reviewed, and adds the expert disclosure date. It drops "helpfulness only if qualifying victimhood is established" in favor of "only if reached," which tracks the Count 3 ruling.

Line edits to the current motion packet

Ten edits bring the packet in line with the order. The first two matter most, because they ask for relief the court already denied.

#	Location	Current	Change
1	Proposed Writ ¶ 3	Directs compliance with "the written-denial procedures of subdivision (i)(2), as applicable"	Replace with directive (g): (h) and (i)(2) apply only if the decision reaches helpfulness or rests on non-cooperation.
2	Proposed Judgment ¶ 6	"If CHP denies certification, it shall comply with the written-notice requirements of subdivision (i)(2)."	Same replacement.
3	Proposed Judgment ¶ 3	Error found "in combination with the evidence concerning the conditions of custody"	Replace with findings R1–R3.
4	MPA § I, last paragraph	Order described as recognizing that proof contradicting impairment observations could support relief	Quote the order's three conditions verbatim, including that the officers "lied about it in their police report."
5	MPA § III	Helpfulness presumption stated as a limit on discretion	Add one sentence: Count 3 was dismissed; the presumption matters only if the court orders certification.
6	MPA § IV, ¶¶ 2–3	Door opening, rear search, *Sanders*, *Mercer*	Cut to two sentences: concede the detention phase; challenge only the 01:11 arrest.
7	MPA § VI	*Jackson* PAS argument (full section)	Replace with the one-paragraph chronology correction (PAS voluntary under § 23612(h)–(i); implied-consent refusal post-dated arrest).
8	MPA new section	None	Add the probable-cause section built on Whitman's three conditions, engaging *Espinoza* and *Wolterman*.

#	Location	Current	Change
9	MPA § IX heading	"The helpfulness requirement is supported…"	Retitle "Helpfulness, if the Court reaches certification."
10	Alternative Proposed Order	Unlimited scope, no witnesses or time limit	Replace with the order in the previous section.

Correction to the Oct. 24 memo. It said to remove a "zero drinks" statement from your declaration. The packet's declaration does not contain one; that statement is in the transcript (00:58:36). The point stands only as: do not add it, and do not argue it as fact.

Tone point. Where the brief describes the order's "open alcohol container," note neutrally that the can was empty (Answer ¶ 47). One clause, no criticism of the court.

Open verification items before filing

The first three are dated; the rest gate specific findings or citations.

- [ ] **Oct. 28, 4 p.m. CMC.** Confirm the CM-110 was filed and served; ask whether the court wants a § 1090 evidentiary hearing.
- [ ] **Motion-to-compel clock (CCP § 2031.310(c)).** Find the service date of CHP's verified written responses (verification dated Oct. 20). Treat Dec. 4 as the deadline until confirmed.
- [ ] **Requests for admission.** Serve on genuineness of the native MP4 and AGO 000022–061, and on whether the certifying official viewed the recording before Apr. 20. Finding A9 depends on the answer.
- [ ] **Court playback.** Confirm the court can play the native recording; obtain the receipt for the Sept. 8 2 p.m. refiled proof of service (txn 26AA00239718).
- [ ] **Expert decision.** Retain an SFST expert only if pursuing Alternative 1 at the hearing.
- [ ] ***Wolterman* first page.** The order cites 11 Cal.App.4th Supp. 15; Justia's copy begins at Supp. 16. Confirm in the official reporter.
- [ ] ***Espinoza* pinpoint.** Confirm the order's pp. 101–102 cite against the official reporter; the copy reviewed showed only regional-reporter pages.
- [ ] **Statutes.** Confirm § 679.10 lettering on leginfo, and CCP §§ 1090, 1094 and 1097, before citing.
- [ ] ***Keeler* pinpoint.** Confirm 46 Cal.2d at 600–601.

Sources

- Order Sustaining Demurrer in Part (Aug. 29, 2026), from the portfolio research branch: `01-portfolio-records/matter-32/from-20/Order Sustaining Demurrer In Part - Whitman (Aug 29 2026).pdf`
- Respondents' Verified Answer (Oct. 12, 2026) and Production Set One (Oct. 23, 2026), in Matter20_Merged_v3.pdf
- *Espinoza v. Shiomoto* (2017), via case.law
- *People v. Wolterman* (1992), via Justia